

**IN THE COURT OF THE XI ADDL. CITY CIVIL & SESSIONS JUDGE,
BENGALURU CITY (CCH-8)**

PRESENT

**SRI. B.DASARATHA, B.A., LL.B.,
XI Addl. City Civil & Sessions Judge,
Bengaluru City.**

DATED THIS THE 20th DAY OF AUGUST, 2025

Ex. Petition No.1967/2023

Decree-holder:

1. **Sri. R.Sampath,**
S/o. Sri.Raju,
Aged about 68 years,
Residing at No.11/1,
2nd Main Road,
Hanumanthapuram,
Srirampuram,
Bengaluru – 560 021.

(By Adv. Sri. K.B.Naveen Kumar)

Vs.

Judgment-debtors:

1. **Sri.Tirupathi,**
S/o. Not known to decree-holder,
Aged about 50 years.
2. **Smt. Ramani,**
W/o. Sri.Tirupathi,
Aged about 46 years,

Both are residing at No.10,
2nd Main Road, Hanumanthapuram,

Srirampuram, Bengaluru – 560 021.

(Absent)

ORDERS ON I.A. No.2

The decree-holder has filed the present application under Order XXVI Rule 9 r/w Section 151 of CPC, praying for appointment of the Court Commissioner to take necessary steps to remove the alleged illegal portion of construction put up by the judgment-debtors in the schedule “B” property.

2. The decree-holder has sworn to an affidavit in support of the I.A. contending that, such removal is necessary for effective execution of the decree passed in O.S.No.9248/2019.

3. The judgment-debtors, though represented, have not filed objections.

4. I have heard the learned counsel for decree-holder and perused the decree dated 09.02.2023 passed in O.S.No.9248/2019.

5. The operative portion of the decree clearly shows

that the suit of the plaintiff (present decree-holder) was partly decreed. The relief granted is only of permanent injunction restraining the defendants (present judgment-debtors) from interfering with the possession and enjoyment of the decree-holder over suit "A" schedule property and from infringing his easementary rights over 5 ft. passage.

6. Significantly, there is no direction in the decree to demolish or remove any portion of construction in schedule "B" property. The prayer now sought in this I.A. for appointment of the Commissioner to remove the alleged illegal portion amounts to seeking substantive relief which was neither granted in the suit nor contained in the decree.

7. It is well settled that the Executing Court cannot go behind the decree or enlarge its scope. Since the present application seeks relief beyond the decree, the same is not maintainable. Hence, this court proceed to pass the following:

ORDER

I.A. No.2 filed by the decree-holder
under Order XXVI Rule 9 r/w Section 151
CPC is hereby dismissed as being beyond

the scope of the decree.

(Dictated to the Stenographer Grade-I directly on computer, typed by her, corrected and then pronounced by me, in the open court, this the 20th day of August, 2025)

(B.DASARATHA)
XI ADDL. CITY CIVIL & SESSIONS JUDGE
BENGALURU CITY.